whereof the memory of man runneth not to the contrary; and therefore are looked upon in law to be well created. For though the members thereof can ſhew no legal charter of incorporation, yet in caſes of ſuch high antiquity the law preſumes there once was one; and that by the variety of accidents, which a length of time may produce, the charter is loſt or deſtroyed. The methods, by which the king's conſent is expreſſly given, are either by act of parliament or charter. By act of parliament, of which the royal aſſent is a neceſſary ingredient, corporations may undoubtedly be created[i]: but it is obſervable, that moſt of thoſe ſtatutes, which are uſually cited as having created corporations, do either confirm ſuch as have been before created by the king; as in the caſe of the college of phyſicians, erected by charter 10 Hen. VIII[k], which charter was afterwards confirmed in parliament[l]; or, they permit the king to erect a corporation *in futuro* with ſuch and ſuch powers; as is the caſe of the bank of England[m], and the ſociety of the Britiſh fiſhery[n]. So that the immediate creative act is uſually performed by the king alone, in virtue of his royal prerogative[o].

ALL the other methods therefore whereby corporations exiſt, by common law, by preſcription, and by act of parliament, are for the moſt part reducible to this of the king's letters patent, or charter of incorporation. The king's creation may be performed by the words "*creamus*, *erigimus*, *fundamus*, *incorporamus*," or the like. Nay it is held, that if the king grants to a ſet of men to have *gildam mercatoriam*, a mercantile meeting or aſſembly[p], this is alone ſufficient to incorporate and eſtabliſh them for ever[q].

[i] 10 Rep. 29. 1 Roll. Abr. 512.
[k] 8 Rep. 114.
[l] 14 & 15 Hen. VIII. c. 5.
[m] Stat. 5 & 6 W. & M. c. 20.
[n] Stat. 23 Geo. II. c. 4.
[o] See page 263.
[p] *Gild* ſignified among the Saxons a fraternity, derived from the verb ȝilðan to pay, becauſe every man paid his ſhare towards the expenſes of the community. And hence their place of meeting is frequently called the *Gild-hall*.
[q] 10 Rep. 30. 1 Roll. Abr. 513.

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